



Senate

General Assembly

File No. 302

February Session, 2026

Substitute Senate Bill No. 404

Senate, April 1, 2026

The Committee on Public Safety and Security reported through SEN. GASTON of the 23rd Dist., Chairperson of the Committee on the part of the Senate, that the substitute bill ought to pass.

AN ACT CONCERNING FIREWORKS, FOUNTAINS AND NOVELTIES.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 29-356 of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective October 1, 2026*):

3 As used in this section and sections [29-356] 29-357 to 29-365,
4 inclusive, as amended by this act:

5 (1) "Fireworks" means and includes any combustible or explosive
6 composition, or any substance or combination of substances or article
7 prepared for the purpose of producing a visible or an audible effect by
8 combustion, explosion, deflagration or detonation, and includes blank
9 cartridges, toy pistols, toy cannons, toy canes or toy guns in which
10 explosives are used, the type of balloons which require fire underneath
11 to propel the same, firecrackers, torpedoes, skyrockets, Roman candles,
12 Daygo bombs, and any fireworks containing any explosive or
13 flammable compound, or any tablets or other device containing any
14 explosive substance, except that the term "fireworks" shall not include

15 sparklers, [and] fountains, novelties and toy pistols, toy canes, toy guns
16 or other devices in which paper caps manufactured in accordance with
17 the regulations of the United States Interstate Commerce Commission
18 or its successor agency for packing and shipping of toy paper caps are
19 used and toy pistol paper caps manufactured as provided [therein] in
20 such regulations.

21 (2) "Sparklers" means a wire or stick coated with pyrotechnic
22 composition that produces a shower of sparks upon ignition.

23 (3) "Fountain" means any cardboard or heavy paper cone or
24 cylindrical tube containing pyrotechnic mixture that upon ignition
25 produces a shower of colored sparks, crackling effects, whistling effects
26 or smoke. "Fountain" includes, but is not limited to, (A) a spike fountain,
27 which provides a spike for insertion into the ground, (B) a base fountain
28 which has a wooden or plastic base for placing on the ground, [or] (C) a
29 handle fountain which is a handheld device with a wooden or
30 cardboard handle, or (D) any nonexplosive and nonaerial item that
31 produces the primary effect of spinning on the ground, flashing or
32 strobing, but does not produce a report.

33 (4) "Novelties" means flitter sparklers, party poppers, novelty smoke
34 devices, snappers and novelty snakes, as such terms are described in
35 American Pyrotechnics Association Standard 87-1A, as amended from
36 time to time.

37 Sec. 2. Section 29-357 of the general statutes is repealed and the
38 following is substituted in lieu thereof (*Effective October 1, 2026*):

39 (a) Except as provided in subsection (b) of this section, no person,
40 firm or corporation shall offer for sale, expose for sale, sell at retail or
41 use or explode or possess with intent to sell, use or explode any
42 fireworks. A person who is sixteen years of age or older may offer for
43 sale, expose for sale, sell at retail, purchase, use or possess with intent to
44 sell or use sparklers, [or] fountains or novelties of not more than one
45 hundred grams of pyrotechnic mixture per item, which are
46 nonexplosive and nonaerial, provided (1) such sparklers [and fountains]

47 do not contain magnesium, except for magnalium or magnesium-
48 aluminum alloy, (2) such sparklers [and fountains] containing any
49 chlorate or perchlorate salts do not exceed five grams of composition
50 per item, and (3) when more than one fountain is mounted on a common
51 base, the total pyrotechnic composition does not exceed [two] five
52 hundred grams.

53 (b) The Commissioner of Emergency Services and Public Protection
54 shall adopt [reasonable] regulations, in accordance with the provisions
55 of chapter 54, for the granting of permits for supervised displays of
56 fireworks or for the indoor use of pyrotechnics, sparklers and fountains
57 for special effects by municipalities, fair associations, amusement parks,
58 other organizations or groups of individuals or artisans in pursuit of
59 their trade. Such permit may be issued upon application to said
60 commissioner and after (1) inspection of the site of such display or use
61 by the local fire marshal to determine compliance with the requirements
62 of such regulations, and (2) approval of the chiefs of the police and fire
63 departments, or, if there is no police or fire department, of the first
64 selectman, of the municipality wherein the display is to be held as is
65 provided in this section. No such display shall be handled or fired by
66 any person until such person has been granted a certificate of
67 competency by the Commissioner of Emergency Services and Public
68 Protection, in respect to which a fee of two hundred dollars shall be
69 payable to the State Treasurer when issued and which may be renewed
70 every three years upon payment of a fee of one hundred ninety dollars
71 payable to the State Treasurer, provided such certificate may be
72 suspended or revoked by said commissioner at any time for cause. Such
73 certificate of competency shall attest to the fact that such operator is
74 competent to fire a display. Such display shall be of such a character and
75 so located, discharged or fired as in the opinion of the chiefs of the police
76 and fire departments or such selectman, after proper inspection, will not
77 be hazardous to property or endanger any person or persons. In an
78 aerial bomb, no salute, report or maroon may be used that is composed
79 of a formula of chlorate of potash, sulphur, black needle antimony and
80 dark aluminum. Formulas that may be used in a salute, report or
81 maroon are as follows: (A) Perchlorate of potash, black needle antimony

82 and dark aluminum, and (B) perchlorate of potash, dark aluminum and
83 sulphur. No high explosive such as dynamite, fulminate of mercury or
84 other stimulator for detonating shall be used in any aerial bomb or other
85 pyrotechnics. Application for permits shall be made in writing at least
86 fifteen days prior to the date of display, on such notice as the
87 Commissioner of Emergency Services and Public Protection by
88 regulation prescribes, on forms furnished by the commissioner, and a
89 fee of one hundred dollars shall be payable to the State Treasurer with
90 each such application. After such permit has been granted, sales,
91 possession, use and distribution of fireworks for such display shall be
92 lawful for that purpose only. No permit granted [hereunder] under the
93 provisions of this section shall be transferable. Any permit issued under
94 the provisions of this section may be suspended or revoked by the
95 Commissioner of Emergency Services and Public Protection or the local
96 fire marshal for violation by the permittee of any provision of the
97 general statutes, any regulation or any ordinance relating to fireworks.

98 (c) The Commissioner of Emergency Services and Public Protection
99 may grant variations or exemptions from, or approve equivalent or
100 alternate compliance with, particular provisions of any regulation
101 issued under the provisions of subsection (b) of this section where strict
102 compliance with such provisions would entail practical difficulty or
103 unnecessary hardship or is otherwise adjudged unwarranted, provided
104 any such variation, exemption, approved equivalent or alternate
105 compliance shall, in the opinion of the commissioner, secure the public
106 safety and shall be made in writing.

107 (d) Any person, firm or corporation violating the provisions of this
108 section shall be guilty of a class C misdemeanor, except that (1) any
109 person, firm or corporation violating the provisions of subsection (a) of
110 this section by offering for sale, exposing for sale or selling at retail or
111 possessing with intent to sell any fireworks with a value exceeding ten
112 thousand dollars shall be guilty of a class A misdemeanor, and (2) any
113 person, firm or corporation violating any provision of subsection (b) of
114 this section or any regulation adopted [thereunder] pursuant to said
115 subsection shall be guilty of a class A misdemeanor, except if death or

116 injury results from any such violation, such person, firm or corporation
117 shall be guilty of a class C felony.

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>October 1, 2026</i>	29-356
Sec. 2	<i>October 1, 2026</i>	29-357

PS *Joint Favorable Subst.*

The following Fiscal Impact Statement and Bill Analysis are prepared for the benefit of the members of the General Assembly, solely for purposes of information, summarization and explanation and do not represent the intent of the General Assembly or either chamber thereof for any purpose. In general, fiscal impacts are based upon a variety of informational sources, including the analyst's professional knowledge. Whenever applicable, agency data is consulted as part of the analysis, however final products do not necessarily reflect an assessment from any specific department.

OFA Fiscal Note

State Impact:

Agency Affected	Fund-Effect	FY 27 \$	FY 28 \$
Department of Revenue Services	Various - Revenue Gain	Up to 100,000	Up to 100,000
Judicial Dept. (Probation)	GF - Potential Savings	Minimal	Minimal
Resources of the General Fund	GF - Potential Revenue Loss	Minimal	Minimal

Note: GF=General Fund; Various=Various

Municipal Impact: None

Explanation

The bill results in a sales tax revenue gain of up to \$100,000 annually by expanding the type of fireworks that may be sold in the state to include certain types of fountains and novelties.

The bill also results in a potential savings to the Judicial Department and a potential revenue loss from fines to the extent the bill results in a decrease in illegal activity related to fireworks.¹ On average, the marginal savings to the state for a reduction of supervision in the community is less than \$600 each year for adults and \$450 each year for juveniles.²

¹ Between FY 22 and FY 25, 139 offenses were recorded under CGS § 29-357 and \$1,550 was collected in fines.

² Probation marginal cost is based on services provided by private providers and only includes costs that increase with each additional participant. This does not include a cost for additional supervision by a probation officer unless a new offense is

The Out Years

The annualized ongoing sales tax revenue impact identified above would continue into the future subject to inflation. The annualized ongoing fiscal impact associated with fines would continue into the future subject to violations.

anticipated to result in enough additional offenders to require additional probation officers.

OLR Bill Analysis**sSB 404****AN ACT CONCERNING FIREWORKS, FOUNTAINS AND NOVELTIES.****SUMMARY**

In Connecticut, fireworks are generally illegal unless they are specifically permitted by law; or a municipality, fair association, amusement park, or trade organization or group has a fireworks display permit from the Department of Emergency Services and Public Protection commissioner. Current law allows anyone age 16 or older to offer or expose for sale, sell at retail, purchase, use, or possess with intent to sell or use certain sparklers and fountains (collectively “legal fireworks” for the purposes of this bill analysis).

This bill (1) increases and changes the types and allowable composition of fountains and (2) expands legal fireworks to include specific types of novelties allowed under federal law.

As under existing law for most violations of the state fireworks laws, a violation under the bill is a class C misdemeanor punishable by up to three months in prison, a fine of up to \$500, or both.

Lastly, the bill also makes technical and conforming changes.

EFFECTIVE DATE: October 1, 2026

FOUNTAINS

By law, a “fountain” is generally any cardboard or heavy paper cone or cylindrical tube containing pyrotechnic mixture that produces a shower of colored sparks or smoke when ignited. The bill broadens this definition to include any (1) cardboard or heavy paper cone or cylindrical tube containing pyrotechnic mixture that produces crackling or whistling effects and (2) nonexplosive and nonaerial item that

produces the primary effect of spinning on the ground, flashing, or strobing, but does not produce a report (component of an aerial display shell or mine).

To be legal for general consumer use under current law, fountains must be non-explosive, non-aerial, and cannot contain (1) magnesium, except for magnalium or magnesium-aluminum alloy; (2) more than 100 grams of pyrotechnic mixture per item; and (3) more than five grams of chlorate or perchlorate salts per item. If more than one fountain is mounted on a common base, the total pyrotechnic composition cannot exceed 200 grams. For these fountains, the bill (1) eliminates the prohibition on them containing magnesium, (2) removes the limitation on them having more than five grams of chlorate or perchlorate salts per item, and (3) increases the maximum total pyrotechnic composition amount when more than one is mounted on a common base from 200 to 500 grams.

NOVELTIES

The bill allows people ages 16 or older to offer or expose for sale, sell at retail, purchase, use, or possess with intent to sell or use novelties with not more than 100 grams of pyrotechnic mixture per item, which are nonexplosive and nonaerial. “Novelties” are flitter sparklers, party poppers, novelty smoke devices, snappers, and novelty snakes as described in a federally adopted standard (i.e., currently, the American Pyrotechnics Association (APA) Standard 87-1A (2018)).

These devices have basic descriptions as well as general and specific characteristic requirements. The table below shows a brief description for each of the devices legalized under the bill.

Table: Novelties

Group	Device	Brief Description
Ground Devices, Individual (APA Standard 87-1A § 3.2.2 (2018))	Flitter Sparkler	A paper or cardboard tube attached to a stick or wire that produces a shower of sparks, colored flame, or crackling effect

Group	Device	Brief Description
Novelties (APA Standard 87-1A § 3.2.1 (2018))	Party Popper	A device that is activated by friction where pulling the string or trigger activates the device producing a noise effect and releasing paper streamers or confetti
	Novelty Snake	A device in the form of a pressed pellet of chemical composition that upon burning produces a snake-like ash that expands in length as the pellet burns
	Snapper	A paper or plastic wrapped device that contains silver fulminate coated on small bits of sand or gravel and is activated when dropped, producing a noise effect
	Novelty Smoke Device	A device that produces only smoke

Applicable general requirements include that these devices must not leak pyrotechnic composition during transportation and handling, and one example of a specific characteristic requirement is that the maximum composition weight allowed for flitter sparklers is five grams in a finished device (see APA Standard 87-1A §§ 2.4 and 3.2.2.7 (2018)).

COMMITTEE ACTION

Public Safety and Security Committee

Joint Favorable Substitute

Yea 18 Nay 11 (03/17/2026)